		service does not indicate Hagop "Jack" Kofdarali's relation to the client sufficient that show that service is proper upon this individual. As a result, the Court **CONTINUES** the motion to be relieved as counsel to **July 14, 2026**, at 10:00 a.m. in Department C25. Moving Attorney to file proof of service of the moving papers on the client. Said proof of service to be filed no later than nine (9) court days before the continued hearing date. In addition, Moving Attorney to lodge an updated proposed order reflecting the current trial date no later than nine (9) court days before the continued hearing date. The proposed order must be lodged with the court with the moving papers and specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (California Rules of Court, rule 3.1362(e).) Moving Party to give notice.
105	**Safavi vs. Ghadiri** **25-01522424**	1. Motion for Judgment on the Pleadings 2. Case Management Conference Defendant Nasrin Ghadiri ("Defendant") moves for judgment on the pleadings as to the first cause of action for breach of oral contract and second cause of action for promissory and constructive fraud on the grounds that: (1) the claims are barred by the statute of limitations, (2) a condition precent was never satisfied and therefore no contractual duty to Plaintiff arose, and (3) the fraud based claims are legally deficient and duplicative. First, the Court finds that the motion complies with the timing requirements set forth in Code of Civil Procedure sections 438 and 439. (Code Civ. Proc., §§ 438, subd. (f)(2) and 439, subd. (a).) It does not appear that the meet and confer requirements were met but,

		from the record before it, the Court does not find that meet and confer efforts would be productive at this juncture. Next, "[t]he grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 438, subd. (d).) "Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit." (Code Civ. Proc., § 438, subd. (d).) "The motion for judgment on the pleadings performs the function of a general demurrer." (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852.) "Therefore, it admits all material and issuable facts pleaded." (Ibid.) A "motion for judgment on the pleadings, like a demurrer, raises only questions of law." (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057, 1065.) "In a case involving a motion for judgment on the pleadings, our Supreme Court has said: '[W]e treat the properly pleaded allegations of [the] complaint as true, and also consider those matters subject to judicial notice. [Citations.] 'Moreover, the allegations must be liberally construed with a view to attaining substantial justice among the parties.' [Citation.] 'Our primary task is to determine whether the facts alleged provide the basis for a cause of action against defendants under any theory.' [Citation.]'" (Mendoza v. Continental Sales Co. (2006) 140 Cal.App.4th 1395, 1401 [citing (Alliance Mortgage Co. v. Rothwell (1995) 10 Cal.4th 1226, 1232].) "The motion provided for in this section may be granted with or without leave to file an amended

		complaint or answer, as the case may be." (Code Civ. Proc., § 438(h)(1).) A. REQUEST FOR JUDICIAL NOTICE Defendant requests judicial notice of two documents: (1) Certified translation of July 1, 2023 text messages exchanged between Plaintiff and Defendant, offered to establish the existence and date of the communication containing the exact language that Plaintiff identifies as the alleged breach of contract, attached as Exhibit A and (2) Plaintiff's sworn declaration dated October 31, 2025, filed in Orange County Superior Court Case No. 30-2025-01520822-CL-UD-CJC, attached as Exhibit B. The request for judicial notice is DENIED as the Certified translation of July 1, 2023, text messages exchanged between Plaintiff and Defendant, offered to establish the existence and date of the communication containing the exact language that Plaintiff identifies as the alleged breach of contract. This piece of evidence is not something that the Court may take judicial notice of and is not appropriate to consider when determining a motion for judgment on the pleadings. The request for judicial notice is GRANTED as to Plaintiff's declaration filed in Case No. 2025 01520822. "[P]leadings and declarations are records of a court of this state and therefore qualified for permissive judicial notice under Evidence Code section 452, subdivision (d)." (Tucker v. Pacific Bell Mobile Services (2012) 208 Cal.App.4th 201, 219.) B. CAUSES OF ACTION Based on the Court's interpretation of the operative Complaint, the Complaint contains two causes of action: (1) breach of oral contract and (2) promissory and constructive fraud. Defendant addresses an emotional distress claim, but based on the Court's reading of the Complaint, it appears that Plaintiff is

		claiming emotional damages, not asserting a cause of action for intentional infliction of emotional distress. As such, the Court will only address the causes of action for (1) breach of oral contract and (2) promissory and constructive fraud. 1. Breach of Oral Contract a. Statute of Limitations A cause of action for breach of oral contract is subject to a two-year statute of limitations pursuant to Code of Civil Procedure section 339. (Code Civ. Proc., § 339.) "A cause of action for breach of a contract generally accrues upon the alleged breach." (Spears v. Spears (2023) 97 Cal.App.5th 1294, 1304–1305.) Here, the Court finds that it is unable to determine whether Plaintiff's cause of action for breach of contract is barred by the statute of limitations based on the allegations in the operative Complaint and the judicially noticeable declaration of Plaintiff. Based on the Complaint and Plaintiff's declaration, it is not clear when Plaintiff allegedly completed renovations and when Defendant breached the alleged oral contract by failing to pay Plaintiff the bargain for consideration for the renovations. The Complaint does not allege a date that the renovations were completed or when Defendant allegedly breached the oral agreement. The only dates set forth in the Complaint relate to when Plaintiff was injured and when he received an eviction notice from Defendant. Similarly, Plaintiff's declaration that Defendant filed in support of the motion states: "In 2023, I became sick, required surgery, and was attending school at the same time to establish an

		independent life. Despite these difficulties, I continued and completed the renovation. After the renovation was finished and the value of the property increased, Plaintiff refused to sell the house." From this declaration, the Court is only able to discern that Plaintiff was sick, required surgery, and was attending school in 2023. The alleged renovation was completed after these occurrences, but the declaration does not expressly state when the renovation was complete (Plaintiff performance) and when Defendant refused to sell or transfer the promised ownership share (Defendant's breach). As such, the Court is unable to calculate whether Plaintiff's breach of oral contract cause of action is barred by the applicable statute of limitations at this stage in the litigation. b. Elements of Breach of Oral Contract "[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.) "[T]he complaint must indicate on its face whether the contract is written, oral, or implied by conduct." (Otworth v. Southern Pac. Transportation Co. (1985) 166 Cal.App.3d 452, 458–459.) Express and implied "contract[s] are identical in that they require a meeting of minds or an agreement [citation]." (Aton Center, Inc. v. United Healthcare Ins. Co. (2023) 93 Cal.App.5th 1214, 1230.) "Thus, it is evident that both the express contract and contract implied in fact are founded upon an ascertained agreement or, in other words, are consensual in nature, the substantial difference being in the mode of proof by which they are established." (Ibid.)

		Moreover, "[i]n order to plead a contract by its legal effect, plaintiff must allege the substance of its relevant terms." (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.) "This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions." (Ibid.) Here, the Complaint sufficiently alleges all elements of a breach of oral contract. Plaintiff alleges that the parties entered into an oral agreement "regarding the renovation, sale, and reinvestment of a residential property." Specifically, "Plaintiff agreed to perform a complete renovation of the Defendant's residential property." Then, "[u]pon completion, the Defendant would immediately sell the property, obtain financing from the proceeds and purchase another fixer-upper chosen by the Plaintiff." In addition, "Defendant would transfer one-half ownership of the new property to the Plaintiff and full cooperate in continuing the business venture." "After Plaintiff's full performance, the Defendant – without legal justification – refused to sell the property or transfer the promised ownership share." Defendant alleges the following damages in support of the breach of contract cause of action: (1) "Defendant's breach caused profound and ongoing harm to the Plaintiff, including contractual and ownership right despite complete performance," (2) "[m]issed professional opportunities during the real-estate boom, despite Plaintiff's marketing and management expertise," (3) "[i]nterruption of education and resulting financial and psychological damage," and (4) "[i]solation and emotional distress caused by financial hardship during a critical life stage for career and family formation." The allegation above is sufficient to state a cause of action for breach of oral agreement. The motion for judgment on the pleadings is DENIED as to the first cause of action for breach of oral contract.

		2. Promissory and Constructive Fraud a. Statute of Limitations "A cause of action for fraud accrues when the aggrieved party discovers the facts constituting the fraud." (Austin v. Medicis (2018) 21 Cal.App.5th 577, 588.) "At that point, the plaintiff has three years to bring an action." (Id. [citing Code Civ. Proc., § 338, subd. (d)].) For the same reasons discussed above, the Court is unable to determine whether Plaintiff's cause of action for promissory and constructive fraud cause of action is barred by the applicable statute of limitations. b. Elements of Promissory Fraud "The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) " 'Promissory fraud' is a subspecies of the action for fraud and deceit." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) "A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud." (Ibid.) "An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a contract." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638 [citing Chelini v. Nieri (1948) 32 Cal.2d 480, 487, 196 P.2d 915 ("tort of deceit" adequately pled where plaintiff alleges "defendant intended to and did induce plaintiff to employ him by

		making promises ... he did not intend to (since he knew he could not) perform" (fn. omitted))].) "In such cases, the plaintiff's claim does not depend upon whether the defendant's promise is ultimately enforceable as a contract." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) "If it is enforceable, the [plaintiff] ... has a cause of action in tort as an alternative at least, and perhaps in some instances in addition to his cause of action on the contract." (Ibid.) "Recovery, however, may be limited by the rule against double recovery of tort and contract compensatory damages." (Ibid.) Here, the Court finds that Plaintiff has not sufficiently stated a cause of action for promissory fraud. Plaintiff has not alleged any "knowledge of falsity" or "intent to defraud." There are no allegations that Defendant knew the falsity of her misrepresentations or intended to defraud Plaintiff. The motion for judgment on the pleadings is GRANTED as to the second cause of action for promissory fraud WITH LEAVE TO AMEND. c. Elements of Constructive Fraud "The elements of the cause of action for constructive fraud are: (1) fiduciary relationship; (2) nondisclosure (breach of fiduciary duty); (3) intent to deceive, and (4) reliance and resulting injury." (Younan v. Equifax Inc. (1980) 111 Cal.App.3d 498, 517, fn. 14.) "Actual reliance and causation of injury must be shown." (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1131, as modified on denial of reh'g (Feb. 27, 2014).) "Unlike actual fraud, constructive fraud depends on the existence of a fiduciary relationship of some kind, and this must be alleged." (Younan v. Equifax Inc. (1980) 111 Cal.App.3d 498, 516–517.) "Constructive fraud is a unique species of fraud applicable only to a fiduciary

		or confidential relationship." (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1131, as modified on denial of reh'g (Feb. 27, 2014).) "Constructive fraud arises on a breach of duty by one in a confidential or fiduciary relationship to another which induces justifiable reliance by the latter to his prejudice." (Ibid.) "A confidential relationship exists when one party gains the confidence of the other and purports to act or advise with the other's interest in mind." (Younan v. Equifax Inc. (1980) 111 Cal.App.3d 498, 517, fn 15.) As stated above, Plaintiff has not alleged the Defendant's intent to deceive at the time of the nondisclosure. Additionally, Plaintiff has not alleged the requisite fiduciary relationship between Plaintiff and Defendant. The motion for judgment on the pleadings is GRANTED as to the second cause of action for constructive fraud WITHOUT LEAVE TO AMEND.
106	**Saldarriaga vs. Javahery** **24-01373839**	Plaintiff/ Cross-Defendant, Defendant/ Cross-Complainant Daniel Toledo ("Toledo") moves pursuant to Code of Civil Procedure section 877.6(a)(1) for a determination that the settlement reached between Daniel Toledo and Evelyn Martinez, Maite Saldarriaga, and Brandon Rodriguez was made in good faith. Toledo also asks the Court to bar all present and future parties to this action from making claims against Daniel Toledo for equitable comparative contribution, or partial or comparative indemnity, based on comparative indemnity, based upon comparative negligence or comparative fault. The determination of a good faith settlement with one or more tortfeasors or co-obligors is governed by Code of Civil Procedure section 877.6. Pursuant to Code of Civil Procedure section 877.6(a)(2):